

TENTATIVE RULING

Fabiola Cervantes v. Hotels of Monterey Peninsula, LLC (24CV004228)

Plaintiff's Motion to Compel Further Responses to Special Interrogatories 82 and 93 and for Sanctions in the Amount of \$9,900.00:

This is a negligence and premises liability case arising from Plaintiff's claim that she was injured on a staircase at Defendant's hotel. Plaintiff's motion concerns two interrogatories which seek identifying information for certain guests who left online reviews about their stay at Defendant's hotel. Defendant objects on privacy grounds.

The Motion to Compel is **DENIED**.

Pursuant to the standards laid out in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35-38, Defendant has established a legally protected privacy interest in the information sought – private information of non-party customers - and Plaintiff has failed to justify compelling production of this information. The privacy interest that hotel guests have in their personal information provided to Defendant for booking (including names, contact information, location information, group information) is significant. Separately, the use of this information to Plaintiff to pursue her case is limited. There is no evidence presented that the other hotel guests whose information is sought actually possess information about the facts or mechanism of Plaintiff's alleged injury, and Plaintiff has more meaningful sources of relevant evidence to build her case, including photographs of the stairs at issue, videos, and expert testimony.

A protective order would not address the privacy interests implicated. Even with a protective order in place, non-party hotel guests would be subject to exposure of their personal information which could cause damage to them, and to Defendant, including in its relationship with such guests. Accordingly, the motion is denied.

The request for sanctions is also denied. Both parties met and conferred extensively and successfully narrowed the issues. Both parties presented justifiable arguments for the remaining disputed positions.

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents 98, 106, 107, 109, and 111 and to Award Sanctions in the Amount of \$9,900.00:

Plaintiff's motion concerns the following requests for production of documents to Defendant:

- Request 98 seeks booking-confirmation and reservation documents for an individual who left an anonymous online review about Defendant's hotel.
- Requests 106 and 107 seek documents concerning Defendant's accounts, dashboards, notifications, communications, and review-management records on platforms where guest reviews are posted and managed.

- Requests 109 and 111 seek documents concerning Defendant's investigations, responses, remedial measures, inspections, maintenance, repairs, or modifications relating to guest complaints and the exterior stairwells.

Defendants object on several bases.

The Motion to Compel is **GRANTED IN PART AND DENIED IN PART**.

With respect to the privacy objection, for the reasons discussed above, the motion to compel a further response to request 98, which seeks non-party customer information, is denied. The motion to compel further responses to requests 106, 107, 109, and 111 is granted, and any non-party customer identifying information may be redacted.

The remaining objections to further production are overruled. Although Evidence Code section 1151 prohibits evidence of remedial measures to prove negligence, that section is a rule of admissibility; it does not create a discovery privilege. Post-incident investigations, inspections, warnings, City-mandated work, repairs, and modifications may lead to admissible evidence concerning the nature and location of the condition, control, feasibility, notice, identification of witnesses or contractors, causation, impeachment, and compliance.

To the extent Defendant is objecting to production on grounds of undue burden, such objection requires a showing of the amount of work required to respond. (See *Williams v Superior Court* (2017) 3 Cal.5th 531, 549–550). Defendant has not made a sufficient showing to justify this objection. Defendant has only stated in a conclusory fashion it would be burdensome. Defendant's papers do not provide the hours it would take to comply with the request or explain in any fashion with specificity why it would be burdensome to comply.

To the extent any work product or privilege is implicated in these responses or any other responses, Defendant must produce a privilege log or something similar. "If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc., § 2031.240.)

Again, the request for sanctions is also denied. Both parties met and conferred extensively and successfully narrowed the issues. Both parties presented justifiable arguments for the remaining disputed positions.

Defendant's Motion for a Protective Order:

Defendant's motion seeks a protective order barring Plaintiff's discovery of nonparty hotel guest information. Specifically, Defendant seeks to prohibit discovery of identities, contact information, reservation records, booking information, and other personal identifying information of nonparty hotel guests. The motion is **GRANTED**.

Defendant is to prepare the court's order on the above three motions consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.